

MUTUAL NON-DISCLOSURE AGREEMENT

This Mutual Non-Disclosure Agreement (the "Agreement") is entered into as of March 3, 2026 (the "Effective Date") by and between Meridian Software Labs, Inc., a Delaware corporation with offices at 410 Harbor Way, Wilmington, DE ("Meridian"), and Bluewater Analytics LLC, a Colorado limited liability company with offices at 88 Summit Street, Denver, CO ("Bluewater"). Each party may be a "Disclosing Party" or a "Receiving Party" under this Agreement.

The parties wish to explore a potential business relationship concerning joint development of analytics tooling (the "Purpose") and, in connection with the Purpose, each party may disclose certain confidential and proprietary information to the other.

1. Definitions

1.1 "Confidential Information" means any non-public information disclosed by the Disclosing Party to the Receiving Party, whether orally, in writing, or by inspection of tangible objects, that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information and the circumstances of disclosure, including without limitation business plans, financial data, customer lists, product roadmaps, source code, and pricing information.

1.2 "Representatives" means a party's employees, officers, directors, advisors, and contractors who have a need to know Confidential Information for the Purpose and who are bound by confidentiality obligations at least as protective as those in this Agreement.

2. Obligations of the Receiving Party

2.1 The Receiving Party shall hold all Confidential Information in strict confidence, shall not disclose it to any third party other than its Representatives, and shall use it solely for the Purpose.

2.2 The Receiving Party shall protect Confidential Information using at least the same degree of care it uses to protect its own confidential information, and in no event less than reasonable care.

2.3 The Receiving Party shall promptly notify the Disclosing Party in writing upon discovery of any unauthorized use or disclosure of Confidential Information.

3. Exclusions

Confidential Information does not include information that: (a) is or becomes publicly available through no fault of the Receiving Party; (b) was rightfully known to the Receiving Party without restriction before disclosure; (c) is rightfully received from a third party without breach of any obligation of confidentiality; or (d) is independently developed by the Receiving Party without use of or reference to the Disclosing Party's Confidential Information.

4. Compelled Disclosure

If the Receiving Party is required by law, regulation, or court order to disclose Confidential Information, it shall, to the extent legally permitted, give the Disclosing Party prompt written notice and reasonable assistance so that the Disclosing Party may seek a protective order or other appropriate remedy.

5. Term and Termination

5.1 This Agreement commences on the Effective Date and continues for two (2) years, unless terminated earlier by either party upon thirty (30) days' prior written notice to the other party.

5.2 The Receiving Party's obligations with respect to Confidential Information disclosed during the term shall survive termination or expiration of this Agreement for a period of five (5) years from the date of disclosure, except that obligations with respect to trade secrets shall continue for as long as such information remains a trade secret.

under applicable law.

6. Return or Destruction of Materials

Upon the Disclosing Party's written request or upon termination of this Agreement, the Receiving Party shall promptly return or destroy all copies of Confidential Information in its possession, and upon request certify such destruction in writing, except for one archival copy retained solely to monitor compliance with this Agreement or as required by law.

7. No License or Warranty

7.1 No license under any patent, copyright, trademark, or other intellectual property right is granted or implied by the disclosure of Confidential Information under this Agreement.

7.2 ALL CONFIDENTIAL INFORMATION IS PROVIDED "AS IS" WITHOUT WARRANTY OF ANY KIND, EXPRESS OR IMPLIED.

8. Remedies

The parties acknowledge that unauthorized disclosure of Confidential Information may cause irreparable harm for which monetary damages would be an inadequate remedy. Accordingly, the Disclosing Party shall be entitled to seek injunctive or other equitable relief in addition to all other remedies available at law, without the requirement to post a bond.

9. Indemnification

Each party shall indemnify and hold harmless the other party from and against any third-party claims, damages, and reasonable attorneys' fees arising out of the indemnifying party's breach of its confidentiality obligations under this Agreement, provided that the indemnified party gives prompt written notice of the claim and reasonable cooperation in its defense.

10. Limitation of Liability

EXCEPT FOR A BREACH OF SECTION 2 (OBLIGATIONS OF THE RECEIVING PARTY) OR AMOUNTS PAYABLE UNDER SECTION 9 (INDEMNIFICATION), NEITHER PARTY'S AGGREGATE LIABILITY ARISING OUT OF OR RELATED TO THIS AGREEMENT SHALL EXCEED FIVE HUNDRED THOUSAND U.S. DOLLARS (US \$500,000), AND NEITHER PARTY SHALL BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, OR CONSEQUENTIAL DAMAGES.

11. Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware, without regard to its conflict of laws principles. The state and federal courts located in New Castle County, Delaware shall have exclusive jurisdiction over any dispute arising under this Agreement.

12. Miscellaneous

This Agreement constitutes the entire agreement between the parties regarding its subject matter and supersedes all prior discussions. It may be amended only in a writing signed by both parties. Neither party may assign this Agreement without the prior written consent of the other, except to a successor in connection with a merger or sale of substantially all assets. If any provision is held unenforceable, the remainder shall continue in full force.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.